

The Claremont City Council held a meeting on Wednesday, August 25, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:39 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
At-Large Councilor Dale Girard
At-Large Councilor Michael Demars
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward III Councilor Jonathan Stone

Absent:

Ward II Councilor James Contois

Also present:

Edward Morris, City Manager
Mary Walter, Finance Director

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to accept the minutes of the August 11, 2021, City Council meeting, as amended.

Mayor Lovett said on page 7, third paragraph she asked to clarify after \$1 trillion funds to add the words “for infrastructure.” On page 11, third paragraph, what she said was reflected accurately in the minutes, but when she researched it after the meeting, she found the number should be 2,123 in 2014.

Voice vote: motion carried 8-0.

MAYOR'S NOTES

Source Water Protection Award

Mayor Lovett said in July 2021, the City Manager had notified the Council and the public that the NH Department of Environmental Services (NHDES) Drinking Water and Groundwater Bureau awarded Claremont the Source Water Protection Award. She felt it was important to make this more than just an announcement, so she wanted to bring this back to thank the participants and to celebrate what Claremont has accomplished. Claremont is one of two entities in the State of NH to get this award. She acknowledged the work that had been done and the people who were a part of the Whitewater Watershed Advisory Committee.

Alex Gleeson, Public Works Director, said this is partnership with our neighboring communities and the Sullivan County ATV Club helped by repairing some bridges in that area.

Mayor Lovett thanked all of the volunteers.

Mayor Lovett continued on with her notes:

- The August 17 Mobile Food Pantry at Runnings was well received. They distributed 326 boxes of dry goods and 458 boxes of fresh produce. She thanked all of the volunteers.
- US Senator Hassan visited Claremont on August 24 to tour the Pleasant Street Project and to discuss infrastructure related topics.
- August 28, 10 a.m.-12 noon, is the Back-to-School Festival at Barnes Park
- August 29, 8:30 a.m.-10:30 a.m., pancake breakfast at the Teal Lantern to benefit the Chamber of Commerce Scholarship Fund
- August 29, 9 a.m.-2 p.m., Claremont Senior Center is hosting its 9th Annual Car Show
- August 30, 2-2:45 p.m., Congresswoman Kuster will be in Claremont to discuss Amtrak and the impact of passenger rail to the region

Councilor Koloski talked about Sunday's bike race which brought almost 350 racers into the community. Businesses saw increased traffic, including his family's business. He heard from them, what a gem Claremont has [Arrowhead]. He thanked everyone involved.

Councilor Demars heard specifically how much work was involved from the bike shop. He said that people were really impressed. He thinks this was a real opportunity to showcase Arrowhead.

CITY MANAGER'S REPORT

Mr. Morris said he spent time at the bike race over the weekend and he heard a lot of good comments about Claremont and about how welcoming everyone was. This was a well-run event. He thanked Parks and Recreation, Fire, Golden Cross Ambulance, Arrowhead Recreation Area, and Rob Walker and his crew at Cycle Depot. He heard the bikers want to come back to Claremont, again.

- **Opioid Settlement** – According to a press release on the National Opioid Settlement website, on July 21, 2021 the Plaintiffs’ Executive Committee (PEC) *“in the federal opioid litigation formally announced the terms for the global settlement agreement with opioid manufacturer Johnson & Johnson and the “Big Three” drug distributors AmerisourceBergen, Cardinal Health, and McKesson. The PEC supports the negotiated terms, which include a higher total amount than previously offered as well as increased upfront dollars for abatement programs in the first few years of settlement payments.”*

“This settlement is structured to provide choice to states and their counties, cities, and towns or ‘subdivisions.’ The first phase is for our states, through the Attorneys General, to decide within 30 days whether their state will participate in the settlement. It will require overwhelming state participation for the settlement to move forward. A state must participate in order for its subdivisions to be eligible to participate. Then, in the states that join the settlement, the local subdivisions will decide whether they will participate. The negotiation team is unanimous in our recommendation that if the number of participating states is an overwhelming number of eligible states, our clients, and every other municipal government, should recognize that this agreement is a promising step towards nationwide abatement of the opioid epidemic.”

Prior to this agreement the State of New Hampshire was one of nine states that opposed the settlement, but now that the settlement agreement has been unanimously supported by the PEC, the State of New Hampshire has until August 21, 2021 to decide whether or not to accept and participate in the agreement. The City will continue to monitor whether or not the State of New Hampshire decides to participate in this agreement, and will continue to keep the City Council updated on the progress of this settlement.

He said the Attorney General’s office agreed to the settlement for the Big Three drug companies, but they did not join the settlement for Johnson & Johnson, because of the small amount of the settlement. They thought the harm caused by Johnson & Johnson was a lot bigger and they think they have a really strong case against Johnson & Johnson. A trial date is set for February 1st next year. The Big Three settlement is \$21 billion over 18 years. We will wait for further direction from our attorneys.

The City has received the first payment of ARPA (American Rescue Plan Act) funds in the amount of \$676,923.26. The City is vetting some of the ideas suggested by the Council and will come back to the Council for further discussion about spending the funds.

- **Current Use Review Update** – The City Assessing Department is conducting an audit of Current Use parcels in the City. This project has been divided into 4 different steps:

(1) Check that all recreational use land is NOT posted against trespassing.

- (2) Audit all managed care forestry parcels for current forest management plans and correct acreage maps.
- (3) Audit all farm parcels to ensure that the correct Soil Productivity Index (SPI) is applied to the State price.
- (4) Audit all forestry parcels for productivity, accessibility, topography, etc., and adjust accordingly.

This started in July and the hope is to have it all completed by the end of 2022.

- **Avigation Easement Update** – The City’s Airport consultant, Stantec Consulting Services, along with the City’s attorney, Upton & Hatfield, LLP and NHDOT-Aeronautics continue to actively negotiate avigation easement settlements with property owners in order to establish avigation easements. We anticipate the obstruction removal project to commence sometime this winter.
- **Project Manager** - Mike McCrory will be our new Project Manager in the Planning and Development office. He will start on August 30th.
- **Police Department** – Officer Michael Puksta and Officer Cameron Blewitt are playing in the CHaD (Children’s Hospital at Dartmouth) Battle of the Badges Baseball Game on Friday, August 20, 2021. They collectively have raised almost \$5,000 for CHaD.

Officer Michael Gilboy graduated from the NH Police Academy on August 20, 2021. He will now start his training at Claremont Police Department.

- **Pleasant Street** – B.U.R. Construction has now allocated two crews to the Pleasant Street Construction Project in an effort to keep on schedule. One crew is still working on moving businesses to temporary water service while the other crew has started the sewer line installation. Crews will continue to work, but may be delayed as rain events come through the area.

City Staff has heard a few concerns about the speed hump that was placed at the entrance to the parking area in front of the Post Office. It was built to the correct specs, but in an effort to reduce any issues, the City will lower it about an inch. It is advised that vehicles entering the parking area reduce their speed to maintain pedestrian safety and avoid the possibility of hitting the top of the speed hump.

The City has also addressed the concern about the quick merge after the turn off Glidden Street onto Broad Street. The City and McFarland Johnson have agreed to keep Glidden Street one lane of traffic for now, and to watch traffic patterns throughout the project before completing final design. We have also asked and will be working with B.U.R. and McFarland Johnson to add more signs and markings to clearly identify the lane merge before Stevens High School.

Sullivan County Transportation has wrapped the bus with the City's marketing information. They have invited the Council and City officials to ride the bus on Monday from Claremont to Lebanon.

COVID-19 Update

- **COVID-19 Update** – The State of New Hampshire and Claremont have seen significant increases in COVID-19 rates (47% increase from August 13 – August 19 across the State of New Hampshire). As of the time of this report, Claremont has 37 active cases. The Delta Variant now makes up over 40% of the cases in New England, and the uptick in cases in NH is being attributed to the Delta Variant as well. The numbers have gone up and down. Today's number is 37.

He has implemented in all City buildings the CDC's current recommendation for all people, including those that are fully vaccinated, to wear a mask in public indoor settings in areas of substantial or high transmission. Sullivan County, along with all counties in the State of New Hampshire, currently have substantial transmission rates. He will keep this recommendation in effect until Sullivan County has held a moderate transmission rate for two weeks.

Experts recommend that the best way to protect yourself from the Delta Variant is to get the COVID-19 vaccination, which is over 90% effective against this variant. The City will continue to monitor COVID-19 cases in our area. The City also encourages residents to get vaccinated and to wear masks in accordance with CDC guidelines:

- The City will host a vaccination clinic at the Claremont Savings Bank Community Center on August 31, 2021 from 10:00 AM – 1:00 PM.
- There is a tentative date of early October for a vaccination clinic at the Fire Station

Councilor Girard asked for:

- Information about installing Truck Route signs which he had previously asked for.
- Update on the sidewalk in front of the Post Office.
- Removing the crosswalks to the old community center.
- Update about an email received by the Council this afternoon from New Hampshire Municipal Association regarding a report for the ARPA funds.

Mr. Morris responded:

- The Truck Route signs have been ordered and hopefully they will be in, in October.
- Regarding the Post Office sidewalk, he just spoke to Public Works. It will take a little bit of time, but it is being worked on.
- Regarding the crosswalk at the old community center, it will be discussed at the Traffic Advisory Committee and then he will report back to the Council.

Councilor Girard asked about a Detour sign for turning up Union Street. Mr. Morris will check it out.

Councilor Koloski asked about Current Use timeframe for property owners to respond to the letters and then what is the follow-up if there is no response.

Councilor Koloski noted that if anyone needs hearing assistive devices while in Council Chambers, they are now available. Mr. Morris said IT is working on instructions for those devices. There is also a system where you can listen through ear buds using your personal cell phone.

Mr. Morris will get the information about the Current Use process.

Mr. Morris said about Councilor Girard's question regarding the ARPA funds, yes, the City has to file a report by October 31 and then annually about what the money is being spent on and how much is being spent.

Assistant Mayor Damren asked to pass on thanks to Assessing regarding the Current Use work as that had been requested a few years ago.

Councilor O'Hearne expressed concern on the Pleasant Street Project that the traffic flaggers were not being consistent with their hand signals.

Councilor O'Hearne asked if the line painting had been completed. He was concerned about the lines on some of the one-way streets. Mr. Gleeson said the line painting was not complete and the company will come back to finish up the last few streets; he'll check to make sure it is done.

CITIZEN'S FORUM

At 7:15 p.m., Councilor Koloski left the Council table.

Nick Koloski, Ward 3, said that tomorrow at Timeout, 11 a.m., there will be a large, free, produce give away for anyone in need. He said this is a community event and he thanked all of the volunteers.

At 7:16 p.m., Councilor Koloski returned to the Council table.

OLD BUSINESS

Nancy Merrill, Planning and Development Director, said that the CDBG (Community Development Block Grant) hearing was posted in July, but the time of the hearing was dropped off. CDBG is allowing the Sugar River application to go forward, if approved, after renoticing and rehearing. She said that TLC had pulled their application.

A. CDBG Status Reports

1. Planning Study Grant – Sugar River Cooperative infrastructure. To present, and take public comment on, the Sugar River Cooperative infrastructure planning study at 38 Upham Place. **(Public Hearing)**

Mayor Lovett noted that the information document was on the website prior to the public hearings and available at the public hearing.

Mayor Lovett read: Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available for economic development projects, up to \$500,000 for public facility, up to \$500,000 for housing projects, and up to \$500,000 for emergency activities. Addition CDBG-CV are available for projects for the prevention of, preparation for, and response to COVID-19. Up to \$25,000 is available per planning study grant. All projects must directly benefit a majority of low and moderate income persons. The public hearings are on the following:

In June 2021, DuBois & King Engineering completed an infrastructure study at Sugar River Cooperative, a 30 unit manufactured housing park at 38 Upham Place. The engineers recommend replacing the 50+ year old water distribution with either 4” or 8” watermain at a cost estimate of approx. \$270,000 - \$435,000. A municipal sewer connection would cost approx. \$625,099. Paving after improvements \$77,550.

Mayor Lovett opened the public hearing and asked for public comment.

Leighton Eastman, resident of Sugar River Coop, talked about the aged water system and that there are 28 people on a three-quarter inch line. They’ve had problems with water leaks. They have raised rents in order to help pay for the leak repairs.

Mayor Lovett closed the public hearing.

2. Public Facilities Grant - To update the public on, and take comment on, the progress of the purchase of 169 Main Street by the Claremont Learning Partnership. **(Public Hearing)**

On June 1, 2021, Claremont Learning Partnership purchased the building at 169 Main Street which houses social service agencies including One-4-All Childcare programs, Baby Steps, WIC, and the Teen Center.

The \$300,000 in CDBG funds was applied to the \$310,000 purchase cost.

Mayor Lovett opened the public hearing and asked for public comment.

Cathy Pellerin, Executive Director, Claremont Learning Partnership, talked about the teen shelter called Oasis that is meant to serve primarily Claremont and Sullivan County youth. They anticipate receiving HUD funding which mandates that if there are available bed(s) and someone from the state needs it, they would be allowed to fill it, but it is anticipated that all beds will be filled at all times

with Sullivan County residents. They will bring in a teen recovery group for teens struggling with substance misuse, and this is only for their teen population. Their application for a Charter School is under review. It's an alternative school for disadvantaged youths. They will hold an Open House on September 24, 12 p.m.-2 p.m.

Mayor Lovett closed the public hearing.

A. CDBG Grant Applications

1. CDBG Public Facility Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Public Facilities Grant for up to \$500,000 from its application authority for 2021 to the NH Community Development Finance Authority for infrastructure improvements for the Sugar River Cooperative, a 30-unit manufactured housing park at 38 Upham Place.

a. Motion to Approve Application for Grant – **(Public Hearing)**

Mayor Lovett read: This is proposed 2021 CDBG Public Facility Application, up to \$500,000 for Sugar River Cooperative, a 30 unit manufactured housing park at 38 Upham Place. The funds are for infrastructure improvements identified in a CDBG planning grant assessment of the condition of water & sewer systems. The majority of the residents at Sugar River Park are of low and moderate income.

Councilor O'Hearne questioned whether or not this item should be considered Old Business or New Business and whether or not it should be reconsidered.

Donna Lane, grant writer, said that CDFA does not have an opinion on this and that it is up to the City to decide if it is Old Business or New Business.

Councilors felt it was properly noticed as Old Business.

Mayor Lovett opened the public hearing and asked for public comment. No one spoke. She closed the public hearing.

A motion was made by Councilor Demars and seconded by Councilor Stone that the Claremont City Council hereby approves the submission of a Community Development Block Grant application for infrastructure improvements for Sugar River Cooperative, a 30 unit manufactured housing park at 38 Upham Place in Claremont, to the New Hampshire Community Development Finance Authority in an amount not to exceed \$500,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Voice vote: motion carried 8-0.

- b. Motion to Approve Residential Anti-displacement and Relocation Plan for the proposed Sugar River Cooperative application – **(Public Hearing)**

Mayor Lovett read: The Sugar River Cooperative Infrastructure project is for water/sewer infrastructure. No displacement or relocation is anticipated. CDBG must follow the Uniform Relocation Act if any displacement or relocation occurs.

Mayor Lovett opened the public hearing and asked for public comment. No one spoke. She closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Girard that the Claremont City Council hereby moves to adopt the City's Residential Anti-Displacement and Relocation Assistance Plan for the proposed Sugar River Cooperative Infrastructure Improvements project.

Voice vote: motion carried 8-0.

2. CDBG Planning Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Planning application for up to \$25,000 from its application authority for 2021 to the NH Community Development Finance Authority for Nick Koloski at 3 Princeton Street to study the feasibility of four new housing units and upgrades to three additional housing units.

- a. Motion to Approve Application for Grant – **(Public Hearing)**

At 7:37 p.m., Councilor Koloski recused himself and left the Council table.

Mayor Lovett read: This is a proposed 2021 CDBG Planning Grant Application, up to \$25,000, for Nick Koloski, 3 Princeton St. The funds to be used for a feasibility study for 4 new units of housing and 3 upgrades to existing units. The majority of the housing would be affordable housing.

Mayor Lovett opened the public hearing and asked for public comment.

Nick Koloski, applicant, said this proposal is triggering conversations with people who are looking at smaller projects in order to chip away at housing issues. He said he is not a millionaire, but with this project, there is a potential of him having to get a \$1 million mortgage.

Mayor Lovett closed the public hearing.

A motion was made by Councilor Girard and seconded by Councilor Matteau that the Claremont City Council hereby approves the submission of a Planning Study Community Development Block Grant application for 3 Princeton Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$25,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, to authorize the City Manager to

execute any documents which may be necessary to effectuate the CDBG contract and any other amendments thereto.

Voice vote: motion carried 5-2, with Councilors Stone and O’Hearne voting no, and 1 abstain, Councilor Koloski.

- b. Motion to Approve Residential Anti-Displacement and Relocation Plan for the proposed application – **(Public Hearing)**

Mayor Lovett read: The Planning Study project is to Determine Feasibility of Increased and Improved Housing at 3 Princeton Street. No displacement or relocation is anticipated. CDBG must follow the Uniform Relocation Act if any displacement or relocation occurs.

Mayor Lovett opened the public hearing and asked for public comment. No one spoke. She closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council hereby moves to adopt the City’s Residential Anti-Displacement and Relocation Assistance Plan for the proposed planning study to determine feasibility of increased and improved housing at 3 Princeton Street.

Councilor O’Hearne talked about perception regarding Councilor Koloski’s seat on the Council and this application; he asked if this had ever been done before. Mr. Koloski said he suspects this has not been done before. He pointed out, in the Master Plan, there is a need for housing. Regarding development, he wants to prove to people that anyone can apply for this process; put your money into the community; add units to land you own. In his time on the Council, he hasn’t seen any Councilor apply for these funds.

Ms. Lane said that as long as the Councilor recuses himself, he can pursue this application. A minimum of 50% of the housing would have to be affordable housing, if it goes that far. Right now, it’s a study.

Councilor Matteau said she doesn’t see a conflict of interest.

Mr. Koloski said this is open to everyone.

Councilor Girard said the Council is only giving permission to apply, not giving the grant.

Voice vote: motion carried 5-2 with Councilors O’Hearne and Stone voting no, 1 abstain, Councilor Koloski.

- 3. CDBG Planning Grant Application – The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Planning application for up to \$25,000 from its application authority for 2021 to the NH Community Development Finance Authority for Topstone

Holdings LLC, 101 Mulberry Street to update architect and engineer's plans and study the feasibility of up to 48 new units of housing.

a. Motion to Approve Application for Grant – **(Public Hearing)**

Mayor Lovett read: This is a proposed 2021 CDBG Planning Grant Application, up to \$25,000, for Topstone Holdings LLC, 101 Mulberry St. The funds to be used to update/prepare preliminary architectural and engineering plans and study the feasibility of up to 48 new units of primarily affordable housing.

At 7:50 p.m., Mr. Koloski said he is a tenant in the property and will recuse himself; he did not return to the Council table at this time.

Ms. Merrill said this is a planning grant authorizing Topstone to apply for the grant to see if housing makes sense in that building. These are competitive grants.

Mayor Lovett opened the public hearing and asked for public comment.

Tom Rock, Ward 2, talked about the Housing section of the Master Plan and that this is especially important with historic buildings. It is stated in the Master Plan that the City wants to promote adaptive reuse of existing buildings. The idea is to use existing water, sewer and street systems as well as minimizing using land in the open areas outside the City compact. There is a brownfield element to deal with, so it seems reasonable to approve the grant. Consider lack of availability of quality affordable rentals in the City. To attract businesses to Claremont, it is critical to have housing for employees. For aging residents, an apartment may be more appealing than a house. He suggested looking at the Housing chapter in the Master Plan; the Master Plan is intended to be considered in all City decision making. This grant does not cost the City anything.

Mayor Lovett closed the public hearing.

Councilor Matteau said the need for creating more housing in Claremont is critical. If Claremont doesn't start looking at the problem, the City will start losing businesses because there is no housing. This is planning grant and the Council needs to approve it.

Assistant Mayor Damren said this is simply giving permission to submit an application.

Councilor Girard talked about the Housing and Community Development Plan, August 2021, and that Economic Development Goal #12 is to "Support continued upgrades to existing buildings, adaptive reuse and brownfield remediation throughout the city." This item fits in with that goal and Council should approve the ability to apply for the grant.

Councilor O'Hearne asked what has been done to the property regarding the contamination. Jon Calkins, Topstone, said they can't do anything until the contamination has been taken care of. It was discovered that there is contamination across the street.

Councilor Stone asked how many rental units are in the building, currently. Mr. Calkins said there are three on the first floor and one on the second level.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren that the Claremont City Council hereby approves the submission of a Planning Study Community Development Block Grant application for 101 Mulberry Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$25,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, to authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Voice vote: motion carried 6-1, with Councilor Stone voting no, 1 abstain, Councilor Koloski.

- b. Motion to Approve Residential Anti-Displacement and Relocation Plan for the proposed application – (Public Hearing)**

Mayor Lovett read: The Planning Study project is to Update/Prepare Preliminary Architectural and Engineering Plans for Housing at 101 Mulberry Street. No displacement or relocation is anticipated. CDBG must follow the Uniform Relocation Act if any displacement or relocation occurs.

Mayor Lovett opened the public hearing and asked for public comment. No one spoke. She closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council hereby moves to adopt the City's Residential Anti-Displacement and Relocation Assistance Plan for the proposed planning study to update and prepare preliminary architect and engineering plans for housing at 101 Mulberry Street.

Voice vote: motion carried 6-1, with Councilor Stone voting no, and 1 abstain, Councilor Koloski.

- 4. Claremont's Housing and Community Development Plan and CDBG Citizen Participation Plan.
 - a. Motion to re-adopt and approve the Housing & Community Development Plan and CDBG Participation Plan – **(Public Hearing)**

Ms. Merrill said this has to be re-upped every 3 years in October. She said she reviewed it to make sure it conforms with the Master Plan.

Mayor Lovett asked if a modification can be done at any time. Ms. Lane said yes, but not past three years.

At 8:07 p.m., Councilor Koloski returned to the Council table.

Mayor Lovett opened the public hearing and asked for public comment. No one spoke. She closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the City Council hereby moves to approve and adopt the City's Housing and Community Development Plan and further authorizes the City Manager or his designees to sign and execute all documents related to the Plan.

Voice vote: motion carried 8-0.

Ordinance 591 Rescind Weapons in Public Buildings – Second Reading – Public Hearing

The purpose of this proposed change is to strike this particular section of the City's Code, in its entirety, in recognition of the preemption of New Hampshire Revised Statute Annotated §159:26 over the authority of City regulation concerning the use and possession of firearms by members of the public. The City of Claremont is a political subdivision of the State of New Hampshire from which the State Legislature possesses the authority to exert sole control and regulation of any matter that it chooses to take complete jurisdiction over. In this case, the State Legislature enacted a law that provides same with the only authority (aside from Federal law) to implement regulation concerning firearms while, expressly restricting the ability of municipalities to adopt ordinances that address the use and possession of firearms (even when such occurs on or in City-owned property).

The City's effort with this amendment is to merely eliminate municipal regulation that directly conflicts with and which is preempted by State law. This change is requested by the City Manager.

Councilor Stone said this is mirroring state law.

A motion was made by Councilor Stone and seconded by Councilor O'Hearne to adopt Ordinance 591 Rescind Weapons in Public Buildings.

Councilor Stone read the ordinance into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Demars - yes

Damren - no

Matteau - no

Koloski - no

Stone - yes

Lovett - yes

Motion carried 5-3.

NEW BUSINESS

Housing Discussion

Mayor Lovett said she had asked for this discussion as housing in NH is in such short supply.

Mr. Morris said Claremont is having a housing issue, as well as an affordable housing issue.

Suzanne Carr, Welfare Director, said that she sees the people who need affordable housing the most. We are in crisis mode; Sullivan County's vacancy rate has been at zero for 5 of the last 6 years. Sullivan County rental rates have risen. The median rental in Sullivan County is \$1,119 and she could see it easily being \$1,400-\$1,500. She has people who are eligible for subsidized housing, but they can't get into any apartments because the rents are too high. More housing will help and it's not just low-income housing or income-based housing. NH has an aging population and she is receiving calls from seniors who have apartments, but are getting priced out of them. The average Social Security retirement check is \$1,500 a month, and with rents \$1,000 a month, there's not much else to say.

Ms. Merrill said the Regional Planning Commission just finished Keys to the Valley, Housing Around the Region. The housing issue is regional/statewide. Lebanon rents are over \$2,000. Market rates are going up. We have employers who are deeply concerned. It's diminishing returns and at some point, you may lose employers if they can't get housing for their employees.

Councilor Demars said it is pretty common in other communities to see new houses being built, but not in Claremont. Ms. Merrill said there are seven this year, which is unique here. She's not sure of the answer. It may be the cost of construction. She hears from realtors that there is a concern about the schools. Councilor Demars said he's heard the building process in Claremont is too cumbersome. Ms. Merrill said Claremont follows the state building code.

Councilor O'Hearne asked if there is a height restriction. He asked getting another hotel in Claremont since Claremont is so close to the interstate.

Ms. Merrill said Claremont has done a good job avoiding sprawl; there is great potential to build here. Water and sewer are highly underutilized.

Councilor Koloski said he is seeing employers talking about potentially relocating elsewhere where there is housing for their employees. He is also seeing people who are employed that are being priced out of their apartments, or their lease is up and they can't afford to get back into their apartments because of price gouging. His business collects items to give to people who are in need and he's had to hand out tents and cots to working people. He is seeing seniors who are asking to get back into the workforce. There are no places to rent. The message needs to go out to developers that Claremont is open. He talked about:

- Private/public partnership
- Parcels along the river

- RSA 79-E for residential
- Website is difficult to navigate
- Need large marketing plan
- Site plan waiver

Councilor Stone has heard from elderly couples who have sold their homes because of high taxes and they are asking what to do with no housing. He has heard complaints that we are “killing people” with our code enforcement when it comes to building new houses.

Ms. Merrill said she has spoken to people who do work in Claremont and asked how they felt about the process and they said it was fantastic and when she told them Claremont has gotten a reputation for being tough, they were stunned. Councilor Matteau said that it used to be bad. Ms. Merrill said that it hasn’t been for quite a while.

Councilor Stone said the Council needs to ask itself what it wants for community development; do you want houses stacked up on each other or space in between houses. He said that people who are buying real estate are from out of state, because they want to be in the country.

Mayor Lovett said regarding housing, there needs to be lots of choices.

Councilor Matteau said there are two ways to create housing, build new and you have to depend on developers coming forward. Rents are starting to get high enough now to interest developers to spend their money. The other side of the coin is that Claremont has a lot of existing space in the community that is unused. She had previously asked how many units in Claremont are sitting vacant, but hasn’t received an answer. She suggested targeting areas, get some grant money, try to get banks to partner to try to get people to invest in a property which would start to regenerate neighborhoods, which would help with blight issues and provide more housing. She said the City has to take the lead on that. She referenced Springfield, Massachusetts, and how they are turning around neighborhoods. She said there are a lot of young people who want to be in the downtown area. Suggested maybe have person on staff as housing coordinator.

Ms. Merrill said we have a lot of activity for new housing on Pleasant Street and she thinks it is because of the investment by the City. She said she doesn’t think Claremont should be afraid of federal subsidy. There is very little in housing development that doesn’t have federal subsidy. Almost every development has to have some workforce housing, i.e. DHMC, 100 units, all mixed income.

Councilor Stone asked about the status of tax deeded properties. Mr. Morris said the City is going through the process and will come to the Council soon. There is an auction scheduled for September 22 for only one property. The City is working through the process for other properties and that may be into 2022.

Councilor O’Hearne asked about vacant lots that were taken over by the City. Ms. Merrill said the City is working with NH Housing to see if there are programs to be used in order to put single family homes on those lots.

Councilor Demars asked about tiny homes. Ms. Merrill said the legislature is still working on this. She talked about sending to the attorney a request for zoning ordinance recommendation on cottage courts. They are not tiny homes; they have foundations, no wheels, on one lot with a shared court yard and yards. This came about through a housing grant the City received a few years ago. Attached accessory dwelling units (ADU) are allowed and now we are looking at detached accessory dwelling units. She said it is hard to get financing for ADUs on their own homes. She thinks the City Center zoning that was done a few years ago addressed some of the density issues.

Mr. Morris will follow-up with Councilor Matteau as she had some great ideas. The City has been looking at the housing issue and working on a plan to bring forward to the Council. Regarding Councilor O’Hearne’s earlier comment, the City had a discussion last week about what to do to attract another hotel to this area.

Councilor Koloski asked about housing development as part of the Tractor Supply Project. Ms. Merrill said they have a corner lot and they are waiting for the final stage of the North and Main Project.

Mayor Lovett said at \$1,119 for a two-bedroom apartment, a family would have to make \$45,000 a year in order to be able to spend that much of their income (30%) on rent.

Mayor Lovett said she would like to put all of these ideas onto a one- or two-page document. She suggested Councilors look at the Strategic Plan regarding Housing Stability. There are one-year goals that require legislative action and it would be good to determine if Claremont were in favor of certain legislative actions and then help push that through our Representatives.

Resolution 2022-6 Raise and Appropriate from Fund Balance up to \$3,600 for Zoom
Overtime – Public Hearing (City Manager)

WHEREAS, the City Council, on July 28, 2021, voted to authorize taking approximately \$3,600.00 from fund balance to cover overtime pay for a staff member to monitor and host City Council meetings via Zoom;

WHEREAS, the 2022 operating budget did not contain an appropriation for this purpose.

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of up to \$3,600.00 to be taken from fund balance (to have no impact on the tax rate) for the purpose of paying a staff member the overtime rate for monitoring and hosting City Council meetings via Zoom; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris said in order to make staff available to host Zoom for Council meetings, funding would be needed to cover overtime. The employee who was willing to do this will be leaving, but is willing to take care of the Council meetings until someone else is found.

Councilor Stone said Councilor O’Hearne is the Sergeant-at-Arms and might want to take on those duties.

Councilor O’Hearne didn’t think it would be a big deal. He is a State Representative and while in Concord, he monitors Zoom. He believes he can handle this.

Councilor Demars was against paying overtime for hosting Zoom during Council meetings.

Councilor Stone said that if this doesn’t work out with Councilor O’Hearne, he would not want the funding to pay staff to cover this to come from fund balance.

A majority of the Council agreed to let Councilor O’Hearne host Zoom during the Council meetings.

Accept Sullivan County ATV Club Donation for Cat Hole Road Paving (City Manager)

Mr. Morris said Sullivan County ATV (SCATV) Club applied for, and was approved for, a grant from the state to help pave Cat Hole Road in the amount of \$38,788.10. Total cost to pave the road was \$79,415.64. If Council accepts this donation, it leaves \$40,627.54 for the City to pay. He reached out to Steve Wilkie, SCATV Club President, to see if there are any strings attached to this grant, and he was told there were none.

A motion was made by Assistant Mayor Damren and seconded by Councilor O’Hearne that the Claremont City Council hereby accepts with sincere appreciation a donation of \$38,788.10 for paving a portion of Cat Hole Road from Sullivan County ATV Club.

Voice vote: motion carried 8-0.

Resolution 2022-7 Accept and Expend \$13,000 CRRSA Act Grant for Airport – Public Hearing (City Manager)

WHEREAS the City of Claremont has been awarded a grant from the Coronavirus Response and Relief Supplemental Appropriations (CRRSA) Act in the amount of \$13,000 to reimburse the City’s Municipal Airport for operational expenses during the COVID-19 pandemic; and

WHEREAS the City would like to accept and expend the grant funds for their intended purpose.

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the CRRSA grant (SBG-02-21-2021) in the amount of \$13,000 from the Coronavirus Response and Relief Supplemental Appropriations (CRRSA) Act; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Fire Chief Bryan Burr gave a brief overview of the resolution.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau to adopt Resolution 2022-7 Accept and Expend \$13,000 CRRSA Act Grant for Airport.

Councilor O’Hearne read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Girard - yes

Demars - yes

Damren - yes

Matteau - yes

Koloski - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Re-Approve Identity Theft Prevention Policy (City Manager)

Ms. Richmond gave a brief history of the policy. Covered accounts are the City’s water and sewer accounts.

Mayor Lovett said on page 4 Updates and Administration, Item 2. She said it behooves the Council to get a written report about these items. Ms. Richmond said the only thing collected is the same information that can be found in a phone book. She said there are no problems. She can submit a report to the Council that there are no incidents.

Mayor Lovett asked when was the last time legal counsel reviewed this policy. She has concerns about cybersecurity. Ms. Richmond said this is a Federal Act and she reviewed it before bringing this policy to the Council; she found there have been no changes since 2003.

Regarding the Town of Peterborough which had just been scammed out of \$2.3 million, Councilor Matteau asked what is in place if that were to happen to Claremont. Ms. Richmond briefly explained the processes in place to help prevent that from happening.

Mayor Lovett said she wanted the written report that is discussed on page 4, Item 2. Ms. Richmond will provide it.

A motion was made by Councilor Koloski and seconded by Councilor Girard that the Claremont City Council, pursuant to the "Fair and Accurate Credit Transactions Act of 2003," the "Red Flag Clarification Act of 2010" and Federal Regulation Title 16 Part 681, hereby approves the City of Claremont Identity Theft Prevention Program, as modified, and authorizes the City Manager or his designees to take such actions as may be necessary to implement said Identity Theft Prevention Program, as modified, in accordance with applicable federal and state law and regulation.

Voice vote: motion carried 8-0.

COMMITTEE REPORTS

Councilor Stone said the Policy Committee will meet September 21, 2021, and on the agenda is Chapter 21, Vehicles for Hire.

Mayor Lovett said she is still waiting for the appendix on sidewalk(s). Mr. Morris said he is working on it and it will go to the Claremont Planning Board for approval.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said ARPA Funds discussion may be on the September 22nd agenda. Property maintenance code discussion will be on the 8th.

Councilor Koloski asked when the Transfer Station would be on the agenda. Mayor Lovett said it is on the next agenda.

Councilor Koloski said the State flag in front of City Hall is faded. Councilor O'Hearne said both flags are faded.

Councilor Koloski asked, about replacing the missing, or fixing the heaved, bricks in Opera House Square. He said the City owns pallets of bricks which are next to the Dental Center.

Councilor Koloski asked if the AED units in the City are current (pads not expired, batteries not dead). The one in the front of City Hall has an Elevator sign over it.

Councilor Koloski asked about the opening(s) on the stair landings heading up to the Opera House; a citizen had previously expressed concern that someone could fall through the opening.

Councilor Koloski asked for an update regarding the air conditioning unit in Council Chambers. He would like to see it replaced. Mr. Morris said the City is working to get a quote that could be talked about on ARPA.

CONSULTATION WITH LEGAL COUNSEL

None.

Mr. Morris listed action items:

- Pleasant Street detours/traffic control; will talk with the engineer
- Follow-up on how Assessing will handle the Phase 2 process if letters are not returned
- Work with Public Works regarding yellow lines on one-way streets
- Replace NH and Federal flags in front of the building
- Check AEDs and make sure they are accessible
- Stair landings going up to the Opera House

ADJOURNMENT

At 9:31 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Matteau to adjourn.

Roll call vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council